

justification or other circumstances would make a sanction unjust. (Code of Civ. Proc. Section 2033.290(c).)

The declaration of plaintiff's counsel shows that the requests were served by mail (and electronically), and that the time for response ran without any response from defendant. Plaintiff's counsel sent a meet and confer letter, although it is not required.

The motion is granted. Sanctions are not requested.

9. 9:00 AM CASE NUMBER: L25-11532
CASE NAME: MODERN FLIRTING LLC VS. IGOR NOSOVITSKIY
***HEARING ON MOTION IN RE: NTC \$ MTN FOR ORDER VACATING AND SETTING ASIDE DEFAULT (AND DEFAULT JUDGMENT) DEC, MPA**
FILED BY: NOSOVITSKIY, IGOR
TENTATIVE RULING:

Defendant seeks to set aside the default entered against him in this breach of contract case. Defendant also seeks to set aside the default judgment, but while a judgment has been applied for, it has not yet been entered.

In defendant's declaration, he sets forth a number of different claims in defense of the suit, all of which go to the merits of the dispute. At no point does he assert that he was not served with the summons and complaint or was served improperly. The proof of service asserts that he was served by substitute service on February 15, 2026. The request to enter default was filed on April 24, 2026. Nor does defendant contend that he failed to file a responsive pleading due to mistake, inadvertence, or excusable neglect.

As a threshold matter, however, the file contains no proof of service of the motion on plaintiff's counsel. Accordingly, the motion is continued to January 12, 2027, at 9:00 a.m., to allow Defendant to serve the motion and notice of the continuance in a timely manner.

10. 9:00 AM CASE NUMBER: L25-14969
CASE NAME: ONEMAIN FINANCIAL, LLC AS SERVICER FOR ('ASF') WILMINGTON TRUST, N.A., AS ISSUER LOAN TRUSTEE FOR ONEMAIN FINANCIAL ISSUANCE TRUST 2019-2 VS. ATASHA SCOTT SIMS
***HEARING ON MOTION FOR DISCOVERY MTN TO COMPEL FURTHER RESPONSES FILED BY DEF ON 06/05/2026**
FILED BY: SCOTT SIMS, ATASHA Y
TENTATIVE RULING:

Defendant moves to compel further responses to its First Request for Production of

Documents and Form Interrogatories, and requests sanctions of \$2,160.

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.)

Where a party to whom a discovery request is propounded fails to serve a timely response, the propounding party may move for an order compelling a response. See Code Civ. Proc. § 2030.290 (as to interrogatories); Code Civ. Proc. § 2031.300 (as to demand for inspection of documents). The propounding party may also seek the imposition of monetary sanctions. *Id.* No pre-filing meet and confer process is required.

According to moving counsel’s declaration, the discovery requests were served on March 16, 2026, by mail. Given the thirty-day response time, plus five days for service by mail, responses were due April 20, 2026. Plaintiff responded on April 22, 2026. Where there is no response, no effort to meet and confer was required by the statute. On April 30, 2026, defense counsel sent a letter to defense counsel stating that no response had been received, that all rights to object had been waived, and that a motion to compel responses would be filed if no responses were received in seven days. The responses, which were actually received the day of the letter, did contain some objections, both general and specific to the individual requests, but they also provided substantive responses. For example, in response to Interrogatory number 112.1, plaintiff objected, but “subject to and without waiving said objection,” provided answers. Thus, it is not clear whether the objections resulted in a failure to provide a substantive response.

Defendant contends that responses must be made without objection. No other infirmity with the responses is described.

Where no timely response is served, objections are waived. (Code of Civil Procedure section 2031.300(a) [document requests; section 2030/290(a) [interrogatories]. The court “on motion, may relieve that party from this waiver” if certain conditions are met. The issue here is whether the fact that plaintiff served responses two days later, and before the defendant had taken any action with respect to compelling responses creates an exception to the waiver-of-objections provision. If an exception is created,

defendant's motion plainly fails, due to failure to meet and confer and failure to provide the Separate Statement in support of the motion. (At one point, defendant's memorandum asserts that a Separate Statement was filed, but none appears in the court records.) *In Sinaiko Healthcare Consulting, supra*, 148 Cal.App.4th 390, 403-404, the Court held that providing partial responses after the motion to compel had been filed did not create an exception from the statutory waiver of objections.

Applying the statute literally, the responses were not timely, and the method to obtain relief from the waiver was to file a motion with the court seeking relief from the waiver. Plaintiff acknowledges that it has not done so. Accordingly, the motion must be granted. The court may order, however, only that responses without objection be provided and does not address any other alleged infirmities in the responses. Plaintiff is to file the responses within 30 days.

Defendant requests sanctions of \$2,160, based on a \$600 hourly rate, and including \$900 for time spent on preparing the motion and the remaining \$1,260 for preparation of a reply and appearance at the hearing.

Sanctions are mandatory unless the party subject to the sanction "acted with substantial justification or [where] other circumstances make the imposition of the sanction unjust." (Sections 2020.300 (d), 2032.310(h).) Given the timing of the response and the failure of defense counsel to make any effort to resolve the issues, assuming they have any, the Court finds that plaintiff "acted with substantial justification" and that "other circumstances make the imposition of the sanction unjust."

Thus the Court grants the motion in part, and plaintiff shall provide responses without objection within 30 days of notice of entry of this order. Sanctions are denied.

11. 9:00 AM CASE NUMBER: L26-01030

CASE NAME: DARIUSH ZANDI VS. DOES 1 TO 20

***HEARING ON MOTION IN RE: MOTION TO QUASH SERVICE OF SUMMONS FOR LACK OF PERSONAL JURISDICTION FILED BY DEF ON 04/07/2026**

FILED BY:

TENTATIVE RULING:

I. Introduction

This matter comes before the Court on Defendants' *Motion to Quash Service of Summons for Lack of Personal Jurisdiction*, which was filed on April 7, 2026. Plaintiff Dariush Zandi commenced the underlying action by filing a Complaint on January 28, 2026.